



Procedure No: EXP202401528 (PS/00197/2024)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 28/12/23, Mr. A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection (AEPD).

The complaint is directed against the entity ALL IN DIGITAL MARKETING SL, with NIF: B88369178 (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant in his writing are that, due to the multitude of advertising emails received from allzoners@allzone.es, he requested both in response to that same address and to the one appearing in the privacy policy of their website, delegadodatos@allindigital.es, to be removed from the company's systems to stop receiving advertising, but despite this, he continues to receive them.

Along with the complaint, the following documentation is attached:

- Dated 14/09/23, a copy of the email sent from the complainant's address ***EMAIL.1 to the email address allzoners@allzone.es, containing the following message:
 - o "Good afternoon, I have canceled the subscription to receive your emails through the link that appears at the bottom of your emails about 10 times and I continue to receive them, so I request that you remove me immediately from your distribution list or I will take action."
- Dated 19/09/23, a copy of the email sent from the respondent's address allzoners@allzone.es to the email address ***EMAIL.1, with the subject: "LAST DAYS. Participate now and get this pack or trip to Paris for FREE" and the following message:
 - o "APPLE PACK RAFFLE. - Vote for us..."
- Dated 19/09/23, a copy of the email sent from the complainant's address ***EMAIL.1 to the email address allzoners@allzone.es, containing the following message:
 - o "I see that I continue to receive emails without having been unsubscribed. I will wait the time set by law for it to take effect; if after that time I continue to receive emails from you, I will proceed to file the corresponding complaint with the AEPD."
- Screenshot of the "Privacy Policy" page of the website <https://allzone.es>, (<https://allzone.es/content/2-politica-de-privacidad>) where it can be read, among other issues, the following:
 - o "(...) The holders of the personal data obtained may exercise their rights of personal data protection by sending a written communication to the registered office of ALL IN DIGITAL MARKETING SL or to the email address enabled for this purpose, delegadodatos@allindigital.es, including in both cases a photocopy of their ID on both sides or the signed authorization of their legal representative (...)."
- Dated 19/09/23, a copy of the email sent from the complainant's address ***EMAIL.1 to the email address delegadodatos@allindigital.es containing the following message:
 - o "By this email, I attach documentation for you to proceed to remove me from the distribution list of advertising emails since using the link at the bottom of the emails I receive and responding to that same address requesting the unsubscribe has not been effective."
- Dated 21/09/23, 05/10/23, 12/10/23, 02/11/23, 09/11/23, 14/11/23, 24/11/23, 25/11/23, 14/12/23, 19/12/23, and 23/12/23, copies of the emails sent from the email address allzoners@allzone.es to the address ***EMAIL.1 containing advertising messages, such as the following:
 - o RAFFLE. Your new Apple companions. We value it has a prize. Last hours! We want to thank you for your trust; for this, we can think of no better gift than to offer you the chance to win this incredible gift. Get this APPLE combo COMPLETELY FREE now (...).

SECOND: On 31/01/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to report back within one month on what was stated in the complaint.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) through electronic notification, was received by the responsible party within the availability period, on 02/02/24. THIRD: On 01/03/24, a response letter from the respondent was received at this Agency, in which it states the following:

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- That the client registered on the platform “allzone.es” on 07/13/20 for the purpose of making an online purchase, and subsequently on 04/18/22 for a second purchase, voluntarily accepting all general conditions, the privacy policy, the subscription to newsletters, and associated offers. The acceptance of these conditions was completely explicit.
- That clients have the option to freely manage their subscription to the newsletter and associated offers from the “Personal Information” section of their client area and can unsubscribe or resubscribe at any time as they see fit.
- That each time a client requests to unsubscribe from the mentioned services, the system automatically processes the unsubscription, receiving a confirmation email sent from the company's server. However, if the client accesses their account again and re-accepts the terms of use, their subscription will be automatically reactivated, and they will begin to receive commercial communications again.
- That the reason the client received commercial communications after requesting to unsubscribe is that they accessed the platform again and accepted the conditions.

THIRD: On 03/28/24, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claiming party was admitted for processing.

FOURTH: On 06/05/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity ALL IN DIGITAL MARKETING SL, with CIF: B88369178, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 21 of the LSSI, classified as minor in Article 38.4.d) of the same regulation.

In the opening agreement, it was determined that the sanction that could correspond, based on the existing evidence at the time of the opening and without prejudice to what may result from the instruction, would amount to a total of 20,000 euros (twenty thousand euros).

FIFTH: After the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, the respondent submitted allegations on 06/26/24, in which, in addition to ratifying the same allegations from their letter dated 03/01/24, they state:

- That since the commercial relationship develops online, the only evidence they can provide is the record of the “Client File,” which shows the sending of automatic emails to confirm the subscriptions and unsubscriptions.
- That regarding the allegation of recidivism based on file PS/00574/2023, they emphasize that said file was received on 01/17/24 and that they submitted allegations and proposals for action on 02/07/24, and therefore, the facts considered to be recidivist are prior to these preventive actions.

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Along with the allegations, the respondent presents the following documentation:

- Screenshot of the “empty” registration form as a client on the website www.allzone.es (home → your account) where it can be verified that the options “_ subscribe to the newsletter” and “_ I have read and accept the Privacy Policy” are initially unchecked.

- Screenshot of the "Client File" of the claimant where it can be read, among other information, the following:

Status:

07/13/2020 Subscription

09/14/2023 Unsubscription

09/17/2023 Subscription

09/19/2023 Unsubscription

09/20/2023 Subscription

02/02/2024 Unsubscription

Last emails sent:

02/02/2024 09:32:45

09/20/2023 19:04:37

09/19/2023 08:51:23

09/17/2023 23:30:44

09/14/2023 06:18:55...

- Dated 07/13/20, a copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., THANK YOU FOR SUBSCRIBING TO OUR NEWSLETTER.

- Dated 09/13/23, a copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., YOU HAVE SUCCESSFULLY UNSUBSCRIBED FROM OUR NEWSLETTER.

- Dated 09/17/23, a copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., THANK YOU FOR SUBSCRIBING TO OUR NEWSLETTER.

- Dated 09/19/23, a copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., YOU HAVE SUCCESSFULLY UNSUBSCRIBED FROM OUR NEWSLETTER.

- Dated 09/20/23, a copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., THANK YOU FOR SUBSCRIBING TO OUR NEWSLETTER.

- Dated 02/02/24, a copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., YOU HAVE SUCCESSFULLY UNSUBSCRIBED FROM OUR NEWSLETTER.

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SIXTH: On 03/10/24, a resolution proposal was formulated stating that the Director of the AEPD should sanction the entity ALL IN DIGITAL MARKETING SL, with a fine of 5,000 euros (five thousand euros), for the infringement of Article 21 of the LSSI, classified as minor under Article 38.4.d), as it was determined that the initiation of the present sanctioning procedure (PS/00197/2024) occurred before the previous sanctioning procedure (PS/00574/2023) became final in the administrative route, therefore, for the present sanctioning procedure, the aggravating factor mentioned in section c) of Article 40 of the LSSI could not be considered.

SEVENTH: On 15/10/24, the defendant submitted a written statement of allegations to the resolution proposal reiterating those already presented at the initiation of the file. Specifically, it states the following:

1st That the client registered on the website allzone.es on 13/07/2020, for the completion of their order reference 5519 and on 18/04/2022 the following order with reference 58816, accepting all general purchase conditions, privacy policy, subscription to the newsletter, and offers from partners. (We attach-DOC1 a document showing an example of the moment of registration in which the client accepts the privacy policy and gives their consent to communications about our newsletter and

associated offers) It is noteworthy that access to the client area can only be performed by the client using their personal and private credentials, so the document we show is a generic example.

3rd That the user has the possibility to access their client area and unsubscribe and subscribe to commercial communications, newsletter, and associated offers as many times as they wish or deem appropriate, through the personal data section, by clicking the checkbox, and then the save button (We attach example document DOC2). As indicated in point 2 of our allegations, only the client can access their personal area with their credentials, so DOC2 is a generic example. Each time the user performs this process, they are informed via email of their subscription status. As it is an online website, the only justification we can provide is the registration of the client file where it shows when our server sends such emails to the user with the communication. (We attach the complete client file DOC3) Highlighting the dates on which we have records of each subscription and unsubscription in the commercial communications service, and we also attach the chronology of emails sent to the client to communicate the subscription and unsubscription to the newsletter (DOC4) A joint document where the memorandum of each email issued can be seen, whose recipient address is the one registered by the client in their file, see DOC3). These pieces of evidence are considered conclusive, and not using them as the basis for the argument would be a violation of the legal rights that the defendant has to challenge the received sanction proposal. It is important to emphasize that misinterpreting or manipulating the interpretation of a conclusive document to justify a sanction could constitute an excess of powers by the official, acting with a revenue-collecting intent to the detriment of the rights of the appellant.

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4th That in response to this body regarding the classification of the infringement we can ALLEGE:

1. That in no case has there been any intent on the part of the respondent ALL IN DIGITAL MARKETING SL, since, as explained in points 1, 2, and 3 of the allegations, it is the client voluntarily who can access their data and grant or withdraw authorization for this to use their data for commercial communication purposes. As a business, we cannot prohibit a client from ceasing to be interested or becoming interested again in our offers or communications when they deem it appropriate.
2. That as a recurring fact regarding acts of the same nature, they cite as an example the file PS/00574/2023; it should be noted that this file was received by the respondent on 01/17/2024, with their allegations and proposals for action to prevent such situations being submitted on 02/07/2024, as indicated in the file to which we refer in this document. The client filed a complaint with this body on 12/28/2023, which makes it clear that the facts are prior to our ALLEGATIONS AND PROPOSAL FOR SOLUTION regarding the file they consider as an example of recurrence.

5th It should be noted that we have analyzed the three cases we currently have with the AEPD, and we observe that the modus operandi of the complainants is always the same; they manipulate the subscription and unsubscription of acceptance of commercial communications and newsletters from their client area and then subsequently report having received commercial communications without their consent to challenge us.

Furthermore, the complainants boast about this by publishing on social media the complaints filed with the Spanish Data Protection Agency, which further certifies that they are individuals who want to make themselves known and incite others to also act against the reported company.

In all cases, the AEPD accepts and gives credibility to the statements of the complainants, ignoring all our allegations, which are also accompanied by conclusive evidence of the alleged facts, to continue with the proposed sanctions filed, which leads us to question whether this is a mechanism of action against our company to allegedly defame and harm us.

The AEPD is acting, ignoring the allegations and evidence presented and, in fact, the events are infringing upon our legitimate defense, with a clearly revenue-raising spirit.

From the actions taken in the present procedure and the documentation in the file, the following has

been established:

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PROVEN FACTS

First: The file contains the following documentation provided by the complainant:

- Dated 09/14/23, a copy of the email sent from the complainant's address ***EMAIL.1 to the email address allzoners@allzone.es, containing the following message:
 - o "Good afternoon, I have canceled the subscription to receive your emails through the link that appears at the bottom of your emails about 10 times and I continue to receive them, so I request that you immediately remove me from your distribution list or I will take action."
- Dated 09/19/23, a copy of the email sent from the respondent's address allzoners@allzone.es to the email address ***EMAIL.1, with the subject: "LAST DAYS. Participate now and get this pack or trip to Paris for FREE" and the following message:
 - o "APPLE PACK RAFFLE.- Vote for us..."
- Dated 09/19/23, a copy of the email sent from the complainant's address ***EMAIL.1 to the email address allzoners@allzone.es, containing the following message:
 - o "I see that I continue to receive emails without having unsubscribed. I will wait the time set by law for it to take effect; if after that time I continue to receive emails from you, I will proceed to file the corresponding complaint with the AEPD."
- Screenshot of the "Privacy Policy" page of the website <https://allzone.es>, (<https://allzone.es/content/2-politica-de-privacidad>) where it can be read, among other issues, the following:
 - o (...) The holders of the personal data obtained may exercise their rights of personal data protection by sending a written communication to the registered office of ALL IN DIGITAL MARKETING SL or to the email address designated for this purpose, delegadodatos@allindigital.es, including in both cases a photocopy of their ID on both sides or the signed authorization of their legal representative (...).
- Dated 09/19/23, a copy of the email sent from the complainant's address ***EMAIL.1 to the email address delegadodatos@allindigital.es containing the following message:

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o
"Through this email, I am attaching documentation for you to proceed with removing me from the distribution list of advertising emails, as the link at the bottom of the emails I receive and responding to that same address requesting removal has not been effective."

-

Dated 09/21/23, 10/05/23, 10/12/23, 11/02/23, 11/09/23, 11/14/23, 11/24/23, 11/25/23, 12/14/23, 12/19/23, and 12/23/23, a copy of the emails sent from the email address allzoners@allzone.es to the address ***EMAIL.1 containing advertising messages, such as the following:

o
SWEEPSTAKES. Your new Apple companions. We value your trust. Last hours! We want to thank you for your trust, and for that, we can think of no better gift than to offer you the chance to win this incredible gift. Get this APPLE combo COMPLETELY FREE now (...)."

Second: The following documentation provided by the respondent is recorded in the file:

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Screenshot of the "empty" registration form as a customer on the website www.allzone.es (home → your account) where it can be verified that the options "subscribe to the newsletter" and "I have read

and accept the Privacy Policy" are initially unchecked.

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Screenshot of the "Client File" of the claimant where it can be read, among other information, the following:

Status:

07/13/2020 Registered

09/14/2023 Unregistered

09/17/2023 Registered

09/19/2023 Unregistered

09/20/2023 Registered

02/02/2024 Unregistered

Last emails sent:

02/02/2024 09:32:45

09/20/2023 19:04:37

09/19/2023 08:51:23

09/17/2023 23:30:44

09/14/2023 06:18:55...

-

Dated 07/13/20, a copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., THANK YOU FOR SUBSCRIBING TO OUR NEWSLETTER.

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Dated 09/17/20, a copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., THANK YOU FOR SUBSCRIBING TO OUR NEWSLETTER.

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Dated 09/19/23, a copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., YOU HAVE BEEN SUCCESSFULLY UNSUBSCRIBED FROM OUR NEWSLETTER.

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Dated 09/20/20, a copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., THANK YOU FOR SUBSCRIBING TO OUR NEWSLETTER.

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Dated 02/02/24, a copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., YOU HAVE BEEN SUCCESSFULLY UNSUBSCRIBED FROM OUR NEWSLETTER.

LEGAL GROUNDS

I

Competence.

According to the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Response to the allegations presented:

First: As a preliminary matter, it should be noted that in the complaint submitted by the claimant, he stated that, after receiving a multitude of advertising emails sent by the respondent, he requested, both by responding to those emails and through the address provided in the privacy policy available on their website, his removal from the...

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Advertising mail distribution systems. However, despite this request, the claimant continued to receive such communications.

The claim was accompanied by copies of the emails sent by the claimant requesting to be removed from the distribution list, as well as the advertising emails received after this request.

For its part, the responding entity has maintained throughout the entire procedure in its written responses to the information request issued by this Agency, in the allegations presented after the initiation of the file, and in its final allegations to the proposed resolution, that whenever a customer requests to unsubscribe from the commercial communications service, this unsubscription is executed automatically in its system, with the customer being informed via an automatic confirmation email. However, the entity has indicated that if the customer accesses their account on the website again with their credentials and accepts the terms of use again, the services are automatically reactivated, which includes the receipt of commercial communications.

Regarding point "First" of the allegations of the responding entity, it states that the claimant registered on the website www.allzone.es on 07/13/20 to make an online purchase, accepting the general contracting conditions, the privacy policy, and the subscription to newsletters and offers from partners. From the documentation provided by the claimant along with their complaint, the emails sent on 09/14/23 and 09/19/23 to the address allzoners@allzone.es stand out, in which the claimant expresses their desire to no longer receive advertising emails, warning of the possibility of taking measures if the sending of such communications persists. Additionally, on the same day, 09/19/23, the claimant also sent another email to the Data Protection Officer of the entity, delegadodatos@allindigital.es, again requesting to be removed from the advertising email distribution list.

From the documentation provided by the responding entity, specifically from the document titled "Client File," it is evident that the claimant is marked as "unsubscribed" on 09/19/23 and in "active" status in the system on 09/20/23, after which they received up to 11 advertising emails on subsequent dates. Well, the responding entity claims that the subscription is automatically reactivated when the customer accesses their account again accepting the terms of use, and this apparently occurred on 09/20/23, according to the "Client File" and the automatic email sent by the responding entity on that same day, but it does not provide any evidence to support this, or to prove that the claimant gave their express consent to receive commercial advertising. That is, no log of the actions taken by the claimant when, according to the responding entity, they accessed again on 09/20/23 is provided, which could demonstrate that they once again gave express consent to receive commercial communications, after having requested the deletion of their data from the entity's systems on three occasions to stop receiving them.

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Second: In the section marked as "third" of the written allegations, the entity being claimed argues that any user has the ability to manage their subscriptions to commercial communications and newsletters through their personal area on the website. According to the information provided, the user can subscribe or unsubscribe at any time through a process that consists of checking a checkbox and saving the changes, after which they receive an electronic notification confirming their status. The company provides as evidence the customer record, which includes the dates of subscription and unsubscription, as well as a timeline of the emails sent to the user.

For its part, after analyzing the advertising emails received by the claimant, it has been verified that at the end of each of these emails the following information appears: "You receive this email because you have subscribed to the All Zone list or because you provided your email address at an event held, and we believe that the information provided may be of interest to you. <>."

In relation to the facts, the claimant asserts that they requested the cancellation of the service through that link on approximately ten occasions, providing as evidence the automatic responses received that confirm this: "you have been unsubscribed successfully."

Consequently, it is evident that the claimant, by using the option provided by the entity in the advertising emails, correctly requested the cancellation of the service and received automatic confirmation of that cancellation. However, the claimant continued to receive advertising emails, which led to the sending of two additional emails to the address allzoners@allzone.es on the dates 14/09/23 and 19/09/23, as well as another email to the Data Protection Officer of the entity (DPO), addressed to delegadodatos@allindigital.es on 19/09/23, in which they again requested that the sending of advertising emails cease.

Despite this, as has been duly established, this request had no effect, given that the claimant continued to receive a total of eleven new advertising emails in the three months following (from October 2023 to December 2023).

In the document sent by the entity to this Agency dated 01/03/24, it states that "...if the customer accesses the website again with their credentials and accepts the general conditions, including the activation of services, they would automatically resubscribe, which would result in the receipt of new commercial communications."

From the above, it follows that, while the customer can manage the cancellation of commercial communications, the mere act of accessing the website again with their credentials to place a new order, for example, would imply the automatic reactivation of the subscription to the newsletters, even if the customer had previously expressed their desire not to receive any more commercial communications.

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This fact is corroborated by the documentation provided by the respondent, which shows that only in the first registration form is explicit consent requested for the receipt of advertising. The entity has not provided evidence demonstrating that, in subsequent accesses to the website, specific consent for the receipt of commercial communications was required again. In this regard, it must be made clear that access to the website is not sufficient to consider that the user has granted their consent again for the sending of advertising; there must be express and specific consent in accordance with the provisions of the applicable regulations.

Third: In the point marked as "fourth" of its written allegations, the respondent, in addition to reiterating that the customer can voluntarily access their private area of the website and unsubscribe/subscribe to

the service of commercial communications, expresses its objection to using "recidivism" as an aggravating factor for calculating the sanction, as it indicates that the complainant filed a complaint with the AEPD on 28/12/23, giving rise to the present file, and that regarding PS/00574/2023, it was received by the respondent on 17/01/24, with its allegations and proposals for action to prevent such situations being submitted on 07/02/24.

Well, it should be noted that this point was already addressed in the "Proposal for 'Resolution'" where it was determined that the initiation of the present sanctioning procedure (PS/00197/2024) was carried out before the previous sanctioning procedure (PS/00574/2023) became firm in the administrative route, so for the present sanctioning procedure, it is not appropriate to consider as an aggravating factor section c) of article 40 of the LSSI, and therefore the sanction to be imposed should be reconsidered, proposing a sanction of 5,000 euros, in line with the sanction imposed in the previous file, PS/00574/2023.

Fourth: In the "fifth" point of its written allegations, the respondent states that it has detected a common pattern in the three complaints filed against the company before the AEPD, indicating that the complainants manipulate the subscriptions and unsubscriptions of commercial communications from their customer area, only to later report having received such communications without their consent. Regarding these allegations, it should be noted that the AEPD does not have the competence to investigate whether the complainants have acted fraudulently by manipulating their consent. In any case, that factor would be irrelevant for this file, which judges the correctness of the respondent's actions in the event of receiving a request to oppose the receipt of commercial communications. However, it should be noted that such actions could constitute, in their case, fraud or abuse of rights, which would correspond to be resolved by other competent authorities in judicial proceedings. The respondent also asserts in this section that, despite providing evidence supporting its allegations, the AEPD gives credibility to the complainants and continues with the proposed sanctions, leading the respondent to question whether this mechanism is being used to defame and harm it. Finally, it accuses the AEPD.

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to act with a revenue-raising intent, ignoring the evidence and infringing upon their right to defense. Well, in this regard, it should only be indicated that the accusations made by the respondent regarding bias, revenue-raising intent, and defamation of the AEPD lack support. The AEPD acts in accordance with the law, guarantees the right to defense, and evaluates the evidence provided objectively, with the sole purpose of ensuring compliance with data protection regulations and the rights of users.

III

Prohibition of unsolicited or expressly authorized commercial communications

The LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is qualified as a service of the information society and defined in its Annex as: "f) Commercial communication": any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

Therefore, the concept of commercial communication, according to the previous definition, encompasses all forms of communications intended to promote directly or indirectly goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Service of the Information Society" as "any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient."

The concept of "Service of the Information Society" also includes services not paid for by their recipients, insofar as they constitute an economic activity for the service provider."

According to section d) of the aforementioned Annex, the recipient is the “natural or legal person who uses, whether or not for professional reasons, a service of the information society.”

IV

Classification of the infringement committed by sending commercial communications that had not been requested or expressly authorized.

Article 21 of the LSSI establishes the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not previously been requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them for sending.”

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commercial communications regarding products or services of their own company that are similar to those that were initially the subject of the contract with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily include an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.

In the present case, it is noted that the complainant has attempted to unsubscribe from the system to stop receiving promotional emails from the complained entity on several occasions but continues to receive promotional emails. Despite this, they present a copy of the emails sent requesting the unsubscribe and the promotional emails received to corroborate it.

For its part, the complained entity states that whenever the client requests to unsubscribe from the mentioned services, this is done automatically and a confirmation is sent to the client regarding the new situation. However, if the client accesses the website again with their credentials and accepts the terms and activates the services again, they are automatically subscribed again and may start receiving commercial communications once more. However, at no time does it provide proof of the message sent to the client informing them that the unsubscribe from the system has been successfully processed.

It also does not provide proof that the complainant, upon re-accessing the client area of the website, has given their consent again for the activation of receiving promotional emails, nor does it provide proof of the response that the DPO may have sent to the complainant when they contacted him via email.

In this regard, it should be made clear that once the right to object has been exercised, it is not possible to consider that the user of the website, merely by accessing it again through their credentials, is granting new consent. In this case, the regulations require express consent. That is, a clear and unequivocal statement from the interested party, so that there is a record and indisputable proof of having revoked their desire to object.

Therefore, the fact that the complained entity continues to send promotional emails to the complainant after they have expressed their desire not to receive any more emails of this type, without providing any proof that the complainant has again given their consent to receive them, constitutes a violation of what is established in Article 21 of the LSSI.

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Sanction

The aforementioned infringement is classified as "minor" in article 38.4.d) of the aforementioned regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic means when the requirements established in article 21 are not met and does not constitute a serious infringement."

In accordance with the provisions of article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

Article 40 of the LSSI establishes the criteria for determining the amount of the sanctions: The amount of the fines imposed will be graded according to the following criteria: a) The existence of intent. b) The period of time during which the infringement has been committed. c) The recurrence of committing infringements of the same nature, when declared as such by a final resolution. d) The nature and amount of the damages caused. e) The benefits obtained from the infringement. f) The volume of billing affected by the committed infringement. g) Adherence to a code of conduct or a self-regulatory advertising system applicable to the committed infringement, which complies with the provisions of article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, it is considered appropriate to grade the sanction to be imposed according to the following aggravating criteria established by article 40 of the LSSI:

- The existence of intent (section a), as it is confirmed that the complainant has attempted to unsubscribe from the advertising email list of the entity being complained about several times, both through the link provided in the received emails and through the Data Protection Officer of the entity, but continues to receive advertising emails.

In accordance with these criteria, it is deemed appropriate to impose a sanction of €5,000 (five thousand euros) for the infringement of article 21.1 of the LSSI.

RESOLVES:

FIRST: TO IMPOSE on the entity, ALL IN DIGITAL MARKETING SL, with CIF: B88369178, for infringement of article 21 of the LSSI, classified in article 38.4.d) of the aforementioned regulation, a fine of €5,000 (five thousand euros).

SECOND: TO NOTIFY this resolution to ALL IN DIGITAL MARKETING SL.

THIRD: TO ADVISE the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in article 68 of the General Collection Regulation, approved.

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by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account

No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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